

Court No. - 21

Case :- WRIT - C No. - 7159 of 2023

Petitioner :- Devendra Dutt Paliwal

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Pradeep Kumar Yadav

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

The petitioner has challenged the demand notice dated 3.3.2022 issued by respondent no.3 for recovery of a sum of Rs.88,273/- towards electricity dues.

Sri Baleshwar Chaturvedi, counsel for the respondent-Electricity Department submits that the petitioner has efficacious remedy of filing objections against the impugned demand notice under Clause 6.5 of the Electricity Supply Code, 2005.

We find considerable force in the said submission.

Accordingly, the petition is disposed of with liberty to the petitioner to file objection against the impugned demand notice as per the procedure prescribed under Clause 6.5 of the Electricity Supply Code, 2005 and in which event, the same shall be decided by respondent no.3 by means of a speaking order within next two weeks.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 1.3.2023

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